



ELEVATOR CONSTRUCTORS ANNUITY & 401 (k) RETIREMENT PLAN



19 CAMPUS BLVD., SUITE 200, NEWTOWN SQUARE, PA 19073-3288

September 25, 2026

Kevin Mears
[REDACTED]

Re: Your Elevator Constructors Annuity and 401(k) Retirement Plan Appeal
ID#: [REDACTED]

Dear Mr. Mears:

I am in receipt of your emails dated September 24, 2026, regarding your request to receive a distribution from your Non-Elective Annuity Contribution Account ("Annuity Account") in the Elevator Constructors Annuity and 401(k) Retirement Plan (the "Plan"). Significantly, as of the date of this letter, your Annuity Account in the Plan is comprised solely of monies which are attributable to Employer Non-Elective Contributions received on or after January 1, 2011 ("New Annuity Account"). You state that you need to access your New Annuity Account to address an immediate financial hardship.

Relevant Provisions of the Plan Document.

Article VI of the Elevator Constructors Annuity and 401(k) Retirement Plan (as amended through January 1, 2025) (the "Plan Document") sets forth the rules governing distributions from the Plan and Article VII of the Plan Document includes the rules governing Hardship Withdrawals from the Plan.

A. You are not eligible for a Distribution from your New Annuity Account.

Section 6.3(b)(3)(C) of the Plan Document sets forth the eligibility rules for New Annuity Account Distributions, and provides in relevant part:

... a Participant may receive a distribution of all or a portion of . . . his [New Annuity Account] . . . after he has attained age 55 and he either is receiving a pension from the National Elevator Industry Pension Fund or is receiving Social Security Retirement benefits.

In addition, a Participant may receive a distribution from his or her New Annuity Account if the Participant incurs a "Disability" as that term is defined in Section 2.14 of the Plan Document:

"Disability" means a Participant's disability that has been determined by the Social Security Administration to qualify the Participant for benefits under Title II and XVI of the Social Security Act. A Participant shall present such evidence as may be reasonably requested by the Trustees of his or her Disability.

At this time, you are not yet age 55, you are not receiving a pension from the National Elevator Industry Pension Plan, and you are not receiving Social Security benefits. Therefore, you are not yet eligible to receive a distribution from your New Annuity Account.

B. Your New Annuity Account cannot be a source account for a Hardship Withdrawal.

The Plan Document permits Hardship Withdrawals made “on account of an immediate and heavy financial need . . . of the Participant . . . [that] is necessary . . . to satisfy such immediate and heavy financial need.” (Plan Document at Section 7.3(b)). *However*, the Plan Document places limits on the source accounts from which a Participant may draw from when seeking a Hardship Withdrawal. In particular, for purposes of the Plan Document’s Hardship Withdrawal rules, a Participant “*may not withdraw any portion* of his or her [New Annuity Account].” (Plan Document at Section 7.1).

You are not eligible for a Hardship Withdrawal because your account balance in the Plan is comprised solely of your New Annuity Account.

Your Appeal Rights

Your appeal will be presented to the Trustees at their next meeting on December 8, 2026. Shortly after the meeting, you will be notified by mail of the Trustees’ decision regarding this appeal.

Sincerely,



Alicia Naccarella
Accounting Manager

Enclosure: Appeals Procedures